

ADMINISTRATIVE POLICIES & PRACTICES WPPM #120-20

Subject: Program Compliance Monitoring

Item: Subpoenas and Search Warrants

PURPOSE:

To ensure compliance with federal regulations and state directives when responding to a subpoena or search warrant related to the WIC program.

POLICY:

- I. The local agency (LA) is required to adhere to the following procedures when presented with a properly served subpoena or search warrant related to the WIC program. The LA director is required to ensure that all LA staff are knowledgeable of the approved procedures.

PROCEDURES:

- I. Subpoenas
 - A. Upon receipt of a subpoena, the LA is required to immediately contact its legal counsel and its assigned CDPH/WIC Contract Manager (CM).
 1. If the subpoena is a request for confidential information, the LA must provide a copy of the subpoena to CDPH/WIC.
 - a. For applicants and participants, confidential information refers to any information that individually identifies an applicant or participant and/or family member(s). Refer to WPPM 970-10 and Exhibit G in the WIC LA Agreement.
 - b. CDPH/WIC will advise the LA regarding next steps, and the LA must wait for instructions from CDPH/WIC before proceeding. CDPH/WIC has the sole authority to determine whether any confidential information may be produced in response to the subpoena.
 2. If the subpoena is a request for:
 - a. LA staff member information or records, the LA should consult with LA counsel.
 - b. LA staff to appear in court, the LA should consult with LA counsel. In general, the LA staff member will need to appear at the time and place indicated on the subpoena.
 - c. LA staff to appear in court and provide confidential information, the LA is required to follow the procedures in 2.a. above for confidential information and follow the procedures in 2.b. above for court appearances.

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II. Search Warrants

A. Upon receipt of a search warrant for confidential information, the LA is required to immediately contact its legal counsel and its assigned CM. The LA is required to comply with the search warrant by following procedures in

[7 CFR 246.26\(j\)\(2\)](#) and must:

1. Carefully review the search warrant to identify the specific confidential information to be disclosed and verify that the search warrant is signed by a judge.
2. Provide only the confidential information specified in the search warrant.
3. Seek to limit the disclosure of the confidential information by informing the individual(s) serving the search warrant that the information is confidential under federal regulation and that public access to the confidential information should be limited to the greatest extent possible.
4. Retain a copy of the search warrant.

III. CDPH/WIC and/or the LA are not required to notify an applicant or participant of any subpoena or search warrant received that requests the individual's confidential information.

IV. The LA is required to contact and consult with LA legal counsel if any formal complaint or notice of lawsuit by an applicant or participant is received as a result of the LA releasing confidential information in response to a subpoena or search warrant. The LA must immediately notify CDPH/WIC of the complaint or notice of lawsuit:

Phone: 1(800) 852-5770

Email: WICABUSE@cdph.ca.gov

AUTHORITY:

[7 CFR 246.26\(d\)](#)

[7 CFR 246.26\(i\)](#)

CROSS REFERENCE:

WPPM 970-10 Glossary

WIC Local Agency Agreement, Exhibit G, Information Privacy and Security Reqs